



AIESEC INDIA COMPENDIUM

Sub-document

Legislative Procedures

This Sub - document covers how legislative meetings are run in AIESEC in India and the role everyone involved plays in it. It also covers the standardized formats and terms which are used in the legislative processes.

1. [Introduction](#)

- 1.1. Legislations are the forums where motions (referred to 8.1) are presented and changes are made to the compendium of AIESEC in India.
- 1.2. The legislative members of AIESEC in India are members of Focus, MCP, SC responsables.
- 1.3. A person can be invited in the NLMs or vNLMs based on special requests made to the LSc/Chair.
- 1.4. Types of Legislations:
 - 1.4.1. There are two types of legislations which can be called for i.e., vNLM or NLM.
 - 1.4.1.1. A vNLM (Virtual National Legislation Meeting) is a forum which is organized/called for virtually.
 - 1.4.1.1.1. A legislative member has no obligation to attend vNLM from a certain venue.
 - 1.4.1.1.2. No one apart from the legislative members of AIESEC in India will be allowed to the vNLM unless there is a motion proposing otherwise.
- 1.5. Flow of a NLM or vNLM:
 - 1.5.1. Every NLM or vNLM will be consisted of two forums:
 - 1.5.1.1. Legislation Fair: Legislation fair is a forum where all the Sc chairs/proposers can present their motions and it can be discussed.
 - 1.5.1.1.1. Legislation Fair is to be moderated by LSc
 - 1.5.1.1.2. No motion can be voted up on during the Legislation Fair.
 - 1.5.1.2. Legislation: Legislation is a forum where all the motions are to be voted up on.
 - 1.5.1.2.1. Legislation are to be moderated by Chair/Secretary of the vNLM or NLM in coordination with LSc
- 1.6 All the SCs have speaking rights at NLM. However, they can do so only while promoting the interest of their particular Sub Committee.

2. Timeline

- 2.1. A vNLM or NLM must be called at least 14 Days in advance along with the invite to the Focus/Subcommittees to send the motions.
- 2.2. All Motions must be sent to the LSc by the SC chairs at least 7 days prior to the NLM or vNLM
- 2.3. The LSc must release the Motion Booklet 72 Hours prior to NLM or vNLM.
- 2.4. There can be a maximum of a 24 hours gap between legislation fair and legislation.
- 2.5. LSc must send the updated compendium to the Focus within 7 days after the vNLM or NLM.
 - 2.5.1. In case, there is a conference conducted within a week of legislation, the deadline for sending the updated compendium shall be 14 days.

3. Proxy

- 3.1. All voting legislative members may assign a proxy for their vote to another voting legislative member of AIESEC in India.
- 3.2. The legislative member will be considered absent in the forum but their vote will be counted.
- 3.3. A voting legislative member can only give a proxy once in a period of 12 months from NLS to NLS.
- 3.4. Any voting member who fails to attend 2 NLMs or vNLMs consecutively without informing LSc, won't be allowed voting rights for the next NLM or vNLM
- 3.5. A person can carry a maximum of 2 proxies during a NLM or vNLM.
- 3.6. Non-voting members can assign a proxy only in cases when they have an appeal against a particular motion. Such proxy representation can only be given to a Voting Member and it needs to be informed to the LSc at least 48 hours before the NLM.

4. Agenda

4.1 Block 1: Legislations Fair

4.1.1 This block includes the presentation of motions by the respective Sub-Committees, followed by general discussions and sidebars (if requested).

4.1.2 The objective of this space is to present motions and facilitate open discussion around them.

4.1.3 No voting occurs during the Legislations Fair. If discussions become repetitive or remain inconclusive, motions may be marked as “Put to Vote” and directly moved to the Legislations block.

4.2 Block 2: Appeals *(only if applicable, as per Clause 14 of the Sub-document)*

4.2.1 This block includes the introduction of the appeal by the LSc, presentation by the appellant, response by the respective Sub-Committee, and a Q&A by the Legislative Members.

4.2.2 The purpose of this block is to allow individuals with direct interest to formally present their appeal in front of the Legislative Members.

4.2.3 No voting takes place during the Appeals block. Instead, the motions under appeal are directly placed for voting during the Legislations block, and the decision to do so lies with the LSc.

4.3 Block 3: Legislations

4.3.1 This block consists of the final presentation of motions—along with any amendments made post-Legislation Fair—followed by the voting process.

5. Roll Calls

5.1. In order to be clear about the number of voting entities present at the vNLM or NLM, a Roll Call shall be taken at the commencement of the legislative session and after breaks/recess allowed during the sessions. Any entity that misses the Roll Call will be marked absent for the forum and won't be allowed to vote given that the entity has voting rights status.

5.2. During vNLMs, should a Member subsequently join/leave, they shall inform the Secretary/LSc of their presence/absence and this shall be recorded in the minutes. An entity that has been partly or fully absent during the discussion of a motion, is not granted speaking and voting rights for the respective motion/s.

- 5.3. At the start of the first session, the Chairperson/LSc shall inform delegates of these procedures.

6. Decorum

- 6.1. Every legislative member is supposed to maintain the decorum of the NLM or vNLM.
- 6.2. No legislative member can threaten other legislative member(s).
- 6.3. The official language to communicate in, during NLM or vNLM is English. Though, a special consideration can be given to a legislative member by Chair/LSc.
- 6.4. LSc has the responsibility to maintain and moderate the decorum of the forum.
- 6.5. In case, a legislative member is not maintaining the decorum of the forum, the LSc/chair can act on it and give the following warnings with repercussions:
 - 6.5.1. Warning I Repercussions: Give a warning to that legislative member along with the ground of objection
 - 6.5.2. Warning II Repercussions: The legislative member won't be allowed to speak for 30 minutes.
 - 6.5.3. Warning III Repercussions: Request the legislative member to leave the forum

7. Quorum

- 7.1. The quorum for Plenary Session at NLMs and vNLMs shall be two-thirds (2/3) of the voting legislative members represented by the current Entity head.
- 7.2. Proxy would be counted as a separate vote and will be applicable provided the conditions for the same are met.

8. Roles & Responsibilities

- 8.1. Chair
 - 8.1.1. Moderate the legislation during NLM or vNLM

- 8.1.2. Provide an unbiased moderation to the forum and coordinate with LSc for voting
- 8.2. Focus
 - 8.2.1. Be present at all the NLMs or vNLMs
 - 8.2.2. Represent the entity's interests and that of a Focus member
 - 8.2.3. Abide by the rules and regulations of the NLMs and vNLMs
 - 8.2.4. Take active participation in suggesting/proposing motions
- 8.3. MC Responsible
 - 8.3.1. Act as a bridge between MC's interests in coordination with the Sc
 - 8.3.2. Support Sc chair with the decision making process
- 8.4. Subcommittees
 - 8.4.1. Present the motion during the legislation fair
 - 8.4.2. Make changes to the motions post legislation fair, if necessary
 - 8.4.3. Represent the respective subdocuments to the legislative members of AIESEC in India
 - 8.4.4. Any Legislative Member failing to perform the task within the stipulated time of the Limited Period motion shall be mandated.
- 8.5. LSc
 - 8.5.1. Schedule & run the timeline for NLM or vNLM
 - 8.5.2. Manage and run legislative processes
 - 8.5.3. To maintain the decorum of the NLM or vNLM
 - 8.5.4. Onboard the Chair with the current legislative processes before the NLM or vNLM.

9. Motions

- 9.1. Motions allow us to make changes to the Compendium if they pass. Following are the types of motions which are allowed in the National Legislations Meeting:
 - 9.1.1. Procedural Motion: Motions which are necessary for the functioning of legislations/internal processes and which are related with compliance to Global Compendium.
 - 9.1.1.1. Procedural motions are never voted on and are assumed to be passed by acclamation.

- 9.1.1.2. Procedural motions fall under the purview of LSc and it should be in context to the respective NLMs and vNLMs.
- 9.1.2. Addition Motion: Motions, when passed will lead to an addition of clause(s)/sub-document in the compendium of AIESEC in India.
- 9.1.3. Amendment Motion: Motions, when passed will lead to a change of clause(s) in the compendium of AIESEC in India.
- 9.1.4. Removal Motion: Motions, when passed will lead to a removal of clause(s)/sub-document in the compendium of AIESEC in India.
- 9.1.5. Bloc Motion: Motion, when proposed, will allow the motions mentioned under it to be voted upon together at once.
 - 9.1.5.1. Objective: To club the motions with similar logic and save time.
 - 9.1.5.2. Mandate Motions coming under the purview of a particular clause can be put together under a Bloc Motion and be voted together. However, it would not be applicable for the motions against which an appeal has been received.
- 9.1.6. Mandate Motion: A mandate motion is orders/directs a member or set of members of the legislative process to pay a fine for violation of the compendium.
- 9.1.7. Limited Period Motion: Limited period motions are a type of mandate motions which have the following purpose:
 - 9.1.7.1. Direct a legislative member to perform a task for follow certain procedures/guidelines. For such motions, the legislative member who is getting the task(s)/guideline has an option to accept/reject it. In case of rejection, the motion will be voted upon.
 - 9.1.7.2. Laying out any guideline/process/procedure which will be existing for a limited period of time which is concerning to more than three legislative members of AIESEC in India. Any such motion shall be voted upon.
- 9.1.8. Disbandment Motions: Disbandment motions are used to disband an entity from the membership of AIESEC in India.
- 9.1.9. Discharge Motions: Discharge motions are used to discharge a

person/entity of their role or a budget upon completion of the term.

- 9.1.10. Ratification Motions: Ratification motions are used to ratify a person/entity to their role or a budget.
- 9.1.11. Upgradation Motions: Upgradation motions are used to upgrade an entity.
- 9.1.12. Downgradation Motions: Downgradation motions are used to downgrade an entity.

9.2. Format

- 9.2.1. Every motion should have its type mentioned
- 9.2.2. Proposer: Proposer is a legislative member of AIESEC in India with voting rights. Proposer has the right to explain the motion in front of legislative members. No motion shall be presented unless there is a proposer.
 - 9.2.2.1. If the proposer backs out and doesn't want to propose the motion the LSc shall ask the voting legislative members, if anyone wants to propose the said motion.
- 9.2.3. Secunder: Secunder is a legislative member of AIESEC in India with voting rights and they have the right to present the motion along with the proposer in front of the legislative members.
 - 9.2.3.1. A motion cannot be discussed by the legislative members till there is a seconder to the motion.
 - 9.2.3.2. If a motion does not have a seconder or if the seconder backs out post motion booklet release, the proposer can request the legislative members in the NLM or vNLM to second.
 - 9.2.3.3. A motion shall be open to discussion once the proposer and seconder have got the chance to speak for the motion
- 9.2.4. The Format to be followed can be referred to here: [Click here](#)

9.3. Eligibility

- 9.3.1. A motion can only be proposed and seconded by the voting legislative members of AIESEC in India.
- 9.3.2. The motion should be in context to the legislation and should be related to the clauses & functioning of the compendium of AIESEC in India. LSc holds rights to reject a motion which doesn't meet the criteria.

9.4. Motion Submission:

- 9.4.1. Any voting legislative member of AIESEC in India can propose/suggest a motion.
- 9.4.2. The motion should be suggested/submitted to the respective Sc or LSc. Based on the nature of motion, the SC can recommend the legislative member about the way forward.
- 9.4.3. Subcommittees cannot deny any motion proposed by a voting legislative member unless it's not formatted well.
 - 9.4.3.1. Any Subcommittee denying to propose a motion should inform the LSc and the SC MC Responsible of the respective subcommittee about the same.

9.5. Motion Withdrawal:

- 9.5.1. Any proposer or seconder can choose to withdraw from the motion during the NLM or vNLM.
- 9.5.2. In case of a motion withdrawal, any voting legislative member can choose to propose the said motion.

9.6. Objections/Queries

- 9.6.1. Following are the types of objections, questions and queries the legislative members of AIESEC in India can have; speaking rights won't be granted for anything apart from these:
- 9.6.2. Point of order: It is raised when a legislative member feels that a process is not conducted in the right manner and therefore would like the responsible to explain.
- 9.6.3. Point of personal privilege: It is raised when a legislative member is feeling personal discomfort and wants to seek a solution for it.
- 9.6.4. Point of information: It is raised when a legislative member wants to get some information related to the discussion at hand.
- 9.6.5. General Discussion: There are two types of discussions allowed in NLMs or vNLMs

- 9.6.5.1. Moderated: Moderated discussions are regulated by LSc during Legislation Fair and by Chair/Secretary in coordination with LSc during legislation.
 - 9.6.5.1.1. Speaker List: Every moderated discussion will be following a speaker's list where the LSc/Secretary will be making a list of 5 speakers at a time during the discussion.
 - 9.6.5.1.2. The proposer and seconder shall have the right to rebuttal after the speaker's argument, if they want to.
 - 9.6.5.1.3. No legislative member, excluding the proposer and seconder shall be allowed to speak more than twice for a motion in the legislation.
 - 9.6.5.1.3.1. Clause 8.6.5.1.3 won't be applicable for legislation fair
- 9.6.5.2. Unmoderated: Unmoderated discussions are only allowed during the breaks and sidebars. Following are the type of sidebars that will be allowed in NLMs and vNLMs:
 - 9.6.5.2.1. MC Sidebar: MC responsables can request a sidebar at any given point of time. A sidebar of a maximum of 15 minutes can be allowed to them with the permission of LSc during Legislation Fair and Chair during Legislations.
 - 9.6.5.2.2. SC Sidebar: SC responsables can request a sidebar at any given point of time. A sidebar of a maximum of 15 minutes can be allowed to them with the permission of LSc during Legislation Fair and Chair during Legislations.
 - 9.6.5.2.3. Proposer Sidebar: A proposer & seconder can request a sidebar while presenting a motion in case any internal discussion is required. A proposer can invite SC responsables for the sidebar. A maximum of 15 minutes can be allowed to them with the permission of LSc during Legislation Fair and Chair during Legislations.
 - 9.6.5.2.4. If a sidebar discussion extends beyond the stipulated time or 15 minutes, whichever is earlier, the motion being proposed by the SC will stand invalid and the SC will have to reintroduce it in the next legislative meeting.

- 9.6.5.2.5. If the particular SC wants to request for extension of a given sidebar, LSC will have to announce the same along with the reasons for extension to all the Legislative Members.

9.6.6. Put to Vote: During legislation fair if discussion over a motion is repetitive or not conclusive, a voting member can suggest the LSc for the motion to be put to vote. If the suggestion is accepted by the LSC, discussion will be halted and the motion will be voted upon during legislation. LSc will have the final say in this.

10. Extraordinary Motions:

10.1. An extraordinary motion can be proposed by a voting legislative member during the NLM or vNLM.

10.2. Extraordinary motions can be presented as a point of order.

10.3. The proposer of the motion, post having a consultation with the LSc can ask for a seconder. Post that, the motion will follow a presentation, followed by an immediate voting.

10.4. Following are the types of extraordinary motions allowed in the NLM or vNLMs

10.4.1. Motion of no confidence in chair/Secretary: An extraordinary motion can be proposed by a voting legislative member if there is misconduct from chair/secretary's side.

10.4.1.1. In case the motion passes by 2/3rd majority, one of the SC MC responsables will be selected as the secretary for the legislations, selected by the MCP of AIESEC in India.

10.4.1.2. Addition/Mandate Motion: An extraordinary motion can be proposed for addition of clause or for mandating any SC/legislative member of AIESEC in India. This does not include mandate fines. The final approval regarding addition of extraordinary motion lies on LSc chair.

10.4.1.3. Limited Period Motion/Limited Period Mandate Motion: An extraordinary motion can be proposed for addition of Limited

Period Motions and Limited Period mandate Motions. This does not include mandate fines.

11. Voting:

- 11.1. Voting rights shall be determined on the basis of the last MSc check conducted.. Each voting member shall be entitled to one vote.
- 11.2. Proxy voting at NLMs or vNLMs shall be permitted. Such proxy representation shall be submitted to the LSC at least 48 hours before the commencement of the NLM or vNLM..
- 11.3. If a voting legislative member leaves during the course of such a NLM or vNLM, a proxy needs to be defined by the member leaving.
- 11.4. Proxies shall not be used to propose or second a motion.
- 11.5. Only voting members can receive a proxy vote. No other legislative member may receive a proxy.
- 11.6. Voting motions shall be carried by a simple majority, unless the Constitution or Standing Orders provides otherwise. The casting of votes shall be in the following order: Votes for, against, abstentions. If the numbers of votes for and against a motion are equal, the motion shall be regarded as not carried. Members abstaining shall be considered as non-voting except in the case of election procedures, or if otherwise specified.

12. Compendium Management

- 12.1. AIESEC logo (specified only in the Bluebook Brand Toolkit by AIESEC International in the year of updated logo usage) should be present in the sub documents and the main compendium.
- 12.2. The footer must consist of the document name on the left side and page number on the right side.
- 12.3. All documents must be in Font Lato in size 10.5 for common text, 12 for sub headings and 14 for main headings in black & blue color and all bullet points must be numbered only.
- 12.4. If motions are not following the correct numbering, LSc can rectify it without using a motion.

13. Process of Appealing

13.1 Before NLM

Any Entity Head can file an appeal against a motion before the commencement of the National Legislative Meeting. The process for the same is as follows:

13.1.1 The Entity Head must send an email to LSc, with CC to the respective Sub-Committee (SC), MCP, and involved MC Responsibles. This email must be sent within 48 hours of the release of the Motion Booklet. Email must include:

13.1.1.1. AIESEC in <Entity Name>_Appeal for <Motion Number> in the Subject of the email.

13.1.1.2. A brief description of the case explaining all the important details.

13.1.1.3. All the necessary proofs.

13.1.2. LSc to review the appeal along with the respective SC within 24 hours.

13.1.3. If the respective SC decides to withdraw the motion, the SC needs to send a mail to the respective entity keeping LSc in loop.

12.2. During NLM

Any Entity Head can file an appeal against a motion to be presented during the National Legislative Meeting. The process for the same is as follows:

12.2.1. The Entity Head must send an email to LSc and MCP, This email must be sent within 48 hours of the release of the Motion Booklet. Email must include:

12.2.1.1. AIESEC in <Entity Name>_Appeal for <Motion Number> in the Subject of the email.

12.2.1.2. The format to be followed for the Appeal presentation can be found [here](#).

12.2.2. The Legislation Subcommittee (LSc) shall not reject any appeal submitted by a legislative member, except in cases where the appeal is improperly formatted or submitted past the prescribed deadline.

12.2.3. The appeal presentation submitted by the appellant shall serve as the **sole document** to be presented to the Legislative Members. Any additional evidence or supporting material must be submitted to and approved by the Legislation Subcommittee in advance. Appeals will be considered based on the merits of the submitted presentation, and in the event that new evidence is introduced, the appellant must obtain prior approval from the LSc before presenting it to the Legislative Members.

12.3. After NLM

Any Legislative Member of AIESEC in India may submit an appeal against a decision taken by any Sub-Committee of AIESEC in India, subject to the restrictions outlined in this section. The process for the same is as follows:

12.3.1. The appeal must be filed by the Legislative Member who has a direct interest in the decision.

12.3.2. The appeal must be submitted to the Legislation Subcommittee (LSc), the respective Sub-Committee (SC) and MCP within 14 days of the release of the decision. The email must include:

12.3.2.1. AIESEC in <Entity Name>_Appeal for <Motion Number> in the Subject of the email.

12.3.2.2. Full Details of the case

12.3.2.3. The Appeal Statement

12.3.2.4. Relevant clauses from the Compendium against which the appeal is made

12.3.3. Upon receiving the appeal email, the LSc must consult with the respective SC and send a summary of the case to the Focus within 72 hours.

12.3.4. LSc must arrange an appeal meeting with the Focus within 14 days of receiving the appeal, ensuring the required quorum is met.

12.3.5. The appeal meeting shall follow this structured agenda:

12.3.5.1. Case Presentation by the Appellant

12.3.5.2. Case Presentation by the Respective SC

12.3.5.3. Question & Answer Session by the FOCUS.

12.3.5.4. Voting by the FOCUS.

12.3.5.5. Announcement of Results, including the vote count